

Smt. M. Bhagyamma vs M. C. Rajendra on 14 March, 2023

Author: Rajendra Badamikar

Bench: Rajendra Badamikar

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CRL.A No.700/2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 14TH DAY OF MARCH, 2023

PRESENT

THE HON'BLE MRS JUSTICE K.S.MUDAGAL

AND

THE HON'BLE MR JUSTICE RAJENDRA BADAMIKAR

CRIMINAL APPEAL No.700/2016 (A)

BETWEEN:

SMT. M. BHAGYAMMA
W/O. M.C. RAJENDRAN
AGED ABOUT 39 YEARS
R/AT SOPPINAKERE
HONNALI TALUK
DAVANAGERE DISTRICT

... APPELLANT

(BY SRI VINOD PRASAD, ADVOCATE)

AND:

1. M. C. RAJENDRA
S/O. D. CHIKKAPPA
AGED ABOUT 42 YEARS
WORKING IN SOCIAL WELFARE DEPARTMENT
2. D. CHIKKAPPA
S/O. DUNDYAPPA
AGED ABOUT 68 YEARS
3. SMT. GANGAMMA
W/O. CHIKKAPPA

Digitally
signed by K S
RENUKAMBA
Location: High
Court of
Karnataka

AGED ABOUT 64 YEARS

4. RAVIKUMAR
S/O. CHIKKAPPA
AGED ABOUT 33 YEARS
WORKING AS SENIOR ENGINEER
IN JINDAL FACTORY, HOSPET

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R1 TO R4 ARE R/AT
8TH CROSS, DURGI GUDI
HONNALI TOWN
DAVANAGERE DISTRICT

5. STATE BY
CIRCLE INSPECTOR OF POLICE
HONNALI CIRCLE
DAVANAGERE DISTRICT
REP. BY SPP
HIGH COURT BUILDING
BANGALORE-560 001

...RESPONDENTS

(BY SRI S.G.RAJENDRA REDDY, ADVOCATE FOR R1 TO R4;
SRI H.S.SHANKAR, HCGP FOR R5)

THIS CRIMINAL APPEAL IS FILED UNDER SECTION 372
CR.P.C PRAYING TO SET ASIDE THE JUDGMENT DATED
17.10.2015 PASSED BY THE PRINCIPAL DISTRICT AND SESSIONS
JUDGE, DAVANAGERE IN S.C.NO.34/2011 AND CONVICT THE
RESPONDENTS/ACCUSED FOR THE OFFENCES PUNISHABLE
UNDER SECTIONS 498A, 307 R/W 34 OF IPC AND SECTIONS 3
AND 4 OF DOWRY PROHIBITION ACT, 1961.

THIS CRIMINAL APPEAL, COMING ON FOR FINAL HEARING,
THIS DAY K.S.MUDAGAL. J, DELIVERED THE FOLLOWING:

JUDGMENT

Challenging the order of acquittal passed in S.C.No.34/2011 by the Principal District & Sessions Judge, Davanagere, the complainant/PW.1 in the said case has preferred this appeal.

2. Respondent Nos.1 to 4 were prosecuted in S.C.No.34/2011 for the offences punishable under Sections 498A and 307 read with Section 34 of IPC and Sections 3 & 4 of the Dowry Prohibition Act, 1961 on the basis of the charge sheet filed by Honnali Police in Crime No.62/2010 of their police station.

in S.C.No.34/2011. For the purpose of convenience the parties will be referred to henceforth according to their ranks before the trial Court.

4. Accused No.1 is the husband, accused No.2 is the father-in-law, accused No.3 is the mother-in-law and accused No.4 is the brother-in-law of PW.1 the complainant. The marriage of accused No.1 and PW.1 was solemnized on 26.04.2004. Out of the said wedlock, the couple begot a daughter namely Sinchana on 01.02.2007. The same is evident by Ex.D1 which is admitted by PW.1 also.

5. Accused No.1 filed M.C.No.10/2009 on 22.08.2009 against the complainant before the Civil Judge, Harihara seeking divorce under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955. In that petition it was alleged that PW.1 after marriage subjected him to cruelty and deserted him without any lawful excuse.

6. At the time of the marriage, accused No.1 was working as Superintendent at BCM Hostel and the complainant was working as teacher. On 22.03.2010 at 10.00 p.m. PW.1 filed complaint as per Ex.P1 before PW.13 the PSI of Honnali Police Station alleging that on the same day at about 6.30 p.m. the accused in connection with their demand for money and her consent for second marriage of accused No.1 assaulted her and attempted to douse her with kerosene and commit her murder.

7. Based on Ex.P1, PW.13 registered the first information report as per Ex.P10 against accused Nos.1 to 4. On registering the first information report, he claims to have seized kerosene strained clothes of PW.1 i.e. MOs.1 to 4 under the mahazar Ex.P2 and handed over further investigation to PW.14. PW.14 on conducting the further investigation, charge sheeted the accused for the offences punishable under Sections 498A and 307 read with Section 34 of IPC and Sections 3 & 4 of the Dowry Prohibition Act, 1961.

8. On committal of the case, the trial Court framed the charges against the accused for the aforesaid offences. The accused denied the charges and claimed trial. In support of it's case, the prosecution examined PWs.1 to 14 and got marked Exs.P1 to P16 and MOs.1 to 4. After their examination under Section 313 of Cr.P.C. the accused did not lead any evidence. However, on their behalf by way of confrontation Exs.D1 to D4 were marked.

9. The trial Court on hearing the parties, by the impugned judgment and order acquitted the accused holding that the evidence of the prosecution was not cogent, consistent and not acceptable to hold that the charges were proved.

10. The State has not preferred any appeal against the said order of acquittal. The complainant alone has preferred the appeal.

Submissions of Sri Vinod Prasad, learned Counsel for the appellant/complainant:

11. Out of her marriage with accused No.1, PW.1 has a daughter. She had no reasons to make a false complaint against the accused and spoil her own matrimonial life. The evidence of PW.1/victim was

further corroborated by the evidence of PWs.3, 6 and 8 the uncles of PW.1. Their evidence was further corroborated by the evidence of PWs.9 and 11 the persons who participated in the marriage talks and in the panchayat held to sort out the differences between PW.1 and accused. Their evidence was further corroborated by the evidence of official witnesses. Therefore the finding of the trial Court that the charges were not proved beyond reasonable doubt is perverse.

12. Sri Shankar H.S., learned HCGP supports the submissions of learned Counsel for the appellant/complainant.

Submissions of Sri S.G.Rajendra Reddy, learned Counsel for the accused/respondent Nos.1 to 4.

13. (i) The marriage had taken place in the year 2004. The complainant was a teacher and educated person. Despite the alleged demand and receipt of dowry in the year 2004, no complaint was filed up to the year 2010. After the husband filing the petition for divorce, as a counterblast to the same, the present complaint was filed. The parents of PW.1 would be the best witnesses to speak if there was any demand and acceptance of dowry at the time of marriage. For the reasons best known to the prosecution, those witnesses were not examined. In the complaint, there is no mention that PW.3 the uncle of PW.1 was present during the marriage talks. It is admitted that on 22.03.2010 itself, accused No.2 had filed a complaint against PW.3 and his sons. Due to such reason, PW.3 set up PW.1 to file the complaint against the accused. PW.1 herself admits that accused No.4 was residing in Bellary and Jindal Town prior to the marriage and all along thereafter. The entire family was roped into the case only to see that they are brought to the terms of PW.1.

(ii) The evidence on record shows that PW.1 insisted that her younger sister be married to accused No.4 which was declined. The evidence further shows that the father of PW.1 had taken financial assistance from accused No.1. When repayment of the same was demanded, false case was foisted against them. The cheque for Rs.85,000/- was issued by PW.3 towards discharge of the said loan. Therefore the father of PW.1 ought to have entered the witness box. For withholding such material evidence, the trial Court rightly drew the adverse inference. PW.1 admitted that in the year 2009 itself, while admitting the child to the school, she had shown that the child and herself were residing in her father's house. That substantiates the contentions of the accused that after birth of the child, PW.1 did not join the accused. Thereby her presence at the house of the accused on the alleged date and time of the attempt of the accused to commit her murder was improbabilized. Under such circumstances, the trial Court was justified in acquitting the accused. The said order does not warrant interference of this Court.

14. Having regard to the rival submissions and on examining the material on records, the question that arises for consideration is:

"Whether the impugned judgment and order of acquittal suffers perversity and patent illegality leading to miscarriage of justice"?

Analysis

15. It is settled principle of law that in an appeal against the order of acquittal, the Appellate Court shall be slow in interfering with the judgment of acquittal. It is settled law that unless the order of acquittal suffers patent illegality or perversity, the Appellate Court cannot interfere with the same merely on the ground that another view is probable. This case has to be examined in the light of such settled position of law.

16. The allegations against the accused in brief were as follows:

(i) That at the time of marriage, the accused demanded and accepted Rs.1,15,000/- in cash and 8 tholas of gold from the parents of PW.1.

(ii) After PW.1 giving birth to a daughter the accused started harassing her on the ground that she gave birth to a girl. Then they started harassing her that she should give consent for second marriage of accused No.1 to beget a male child.

(iii) In continuation of such harassment, accused No.1 filed divorce petition against PW.1. When PW.1 approached the accused for settlement of the matter and for reunion, the accused demanded money for withdrawal of the matrimonial case. Therefore PW.3 issued cheque Ex.P7 for Rs.85,000/- in favour of accused No.1 on behalf of the father of PW.1. Even after receiving the money under the cheque, the accused without withdrawing the matrimonial case again started insisting for money and consent of PW.1 for the second marriage of accused No.1.

(iv) On 22.03.2010 at 6.30 p.m. in the house of the accused, they quarreled with PW.1 demanding her consent

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for second marriage of accused No.1. They said that they will kill her pouring kerosene and project that as a case of suicide. In continuation of such act, they doused her with kerosene. However, she managed to escape. Listening to the galata, the neighbours informed PW.3. PWs.3, 6 and 8 her uncles rushed to the spot, rescued her and then she filed the complaint.

17. It was alleged that the accused demanded and accepted cash of Rs.1,15,000/- and 8 tholas of gold at the time of marriage. As already pointed out, PW.1 was the teacher at the time of marriage itself. The marriage was solemnized on 26.04.2004. The complaint was filed after six years on 22.03.2010. According to the prosecution and the evidence of PW.1 her parents gave the said dowry. PW.1 has admitted and it has come in the evidence that her brother is a police constable. Therefore parents and brother would be the best witnesses to speak about demand and acceptance of dowry. No reason was assigned for not citing them as witnesses or examining them before the Court.

18. Another aspect to be noted is that such complaint came to be filed after accused No.1 filing divorce case against

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PW.1. As per Ex.D1, the admission record of the daughter, the child was born on 01.02.2007. She claims that after the birth of the daughter, the accused started harassing her for begetting a female child, demanding her consent for the second marriage of accused No.1 and demanding the money. If that was the case why she did not file the complaint immediately is not explained.

19. In the complaint as well as in her evidence, PW.1 stated that accused Nos.1 to 3 used to consume alcohol and harass her. But PW.1 herself in her cross-examination admits that accused No.2 was teacher and his family was cultured one and he had inculcated good culture in his children. That goes to show that she had made exaggerated allegation touching the character of the accused.

20. Further PW.1 herself admitted that even prior to the marriage of accused No.1, accused No.4 was residing in Bellary and later in Jindal and working as Senior Engineer. That goes to show that he was roped into the case even when he was living separately. Ex.D1 school record is submitted by PW.1 to the Head Master of Shree Gnanajyothi Vidya Mandir School, Honnali. In that document, PW.1 shows

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herself and her daughter to be the residents of C/o.Galimanjappa, Doddakere, Honnali i.e. her father's house. That document itself goes to show that atleast since 09.06.2009 PW.1 was not residing with the accused.

21. In Ex.D2 the divorce petition, accused No.1 contended that after marriage, PW.1 lived with them in their house only till the birth of their daughter. Thereafter on one or the other pretext she started staying away from him. In that petition, he further contended that when they convened panchayat for restitution of their conjugal life, PW.1 did not abide by the elders' suggestions and she threatened the accused that she will see that all of them are sent to jail and accused No.1 is removed from service. He has also contended in the said petition that PW.1 threatened accused No.1 through her brother Yogish who is a police.

22. The accused denied the paying capacity of the parents of PW.1. It was their contention that when father of PW.1 underwent open heart surgery and for the development of their agricultural establishment that is for laying the pipes to irrigate the lands of father of PW.1, he had taken financial assistance from the accused. When repayment of that money was demanded, a panchayat was convened, in that

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panchayat he agreed to pay Rs.85,000/- and on his behalf PW.3 issued cheque as per Ex.P7. PW.1 admitted her father undergoing open heart surgery. The accused suggested to PW.1 that when her father underwent open heart surgery accused No.1 and PW.2 Raju took care of him and donated blood to him. PW.1 does not deny the suggestion. She pleaded her ignorance of the said fact.

Therefore the trial Court held that she evaded that question and therefore it can be inferred that accused No.1 had helped her father at the time of open heart surgery.

23. Under such circumstances, as rightly pointed out by the trial Court, the best witnesses to speak about the demand and acceptance of dowry at the time of marriage and the subsequent panchayat and the circumstances under which cheque for Rs.85,000/- was issued by PW.3 were the parents of PW.1 and her brother. The trial Court was justified in drawing adverse inference for their non examination.

24. Under the aforesaid circumstances, the evidence of PW.1 required better corroboration. PWs.3, 6 and 8 who were examined to support her case were her uncles and close relatives. Moreover, the evidence of PW.3 and Ex.D4 shows

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that accused No.2 had filed complaint against PW.3 and his sons. Based on that complaint, Honnali police had registered case against them for the offences punishable under Sections 143, 147, 148, 504, 448, 323, 324 read with Section 149 of IPC. That goes to show that PW.3 and his sons had ill will against the accused party. Therefore his evidence has to be assessed carefully. He does not state why his brother is not examined. He claims that in the panchayat the accused demanded money and therefore he issued cheque for Rs.85,000/- on behalf of his brother i.e. father of PW.1. Under the circumstances, non examination of father of PW.1 was fatal.

25. The evidence of PW.3 needed better corroboration. According to him, PW.1 and PWs.9 to 12 were the mediators who participated in the panchayat and marriage talks. PW.10 totally turned hostile. PW.12 the alleged mediator supported only partly. He says that at the time of marriage talks, there were no talks regarding payment of dowry. He further says that after the birth of the daughter, there were minor differences between PW.1 and accused No.1. He further states that the relatives of accused No.1, PW.1 and himself advised PW.1 and the accused to live

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amicably. But he does not speak anything about the accused demanding money and PW.3 issuing cheque for Rs.85,000/- to satisfy the said demand of money. In the cross- examination of PWs.10 and 12, nothing was elicited to show that they are in any way interested in the accused and therefore they deposed falsely.

26. Though PW.9 denied the suggestion that he is supporter of PW.3, he himself admits in the cross-examination that at the time of marriage, the accused themselves had given gold mangalya chain weighing 5 tholas. But he pleads his ignorance about the gold bangles weighing 3 tholas. This witness admits that he was involved in a criminal case and was in judicial custody for some time. His name was not referred to in the complaint as the elder who participated in the panchayat. Therefore his evidence was of no help to the prosecution.

27. PW.11 another alleged mediator, in the chief examination itself admits that PW.1 is his younger sister's daughter. When the other mediators admit about accused giving 5 tholas of mangalya chain to PW.1, this witness denies the same. Further he admits in his cross-examination that the cheque for Rs.85,000/- was issued in the panchayat

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held in the sawmill of PW.12 H.B.Nanjappa. PW.12 himself did not support the theory of issuing cheque for Rs.85,000/- on the demand of the accused as additional dowry or in connection with their marital life. Further PW.11 in his cross-examination was not able to give the particulars like the date of the alleged demand, the date when PW.1 revealed about harassment of the accused for money or for begetting the daughter and she informing him about accused No.1 filing matrimonial case. Ultimately he says that his sister informed him two to three times over phone about accused harassing PW.1. He admits that he has not given statement before the Investigating Officer about his sister informing him over phone or about the accused demanding dowry at the time of marriage. If he gets the information through the mother of PW.1, that becomes hearsay evidence. In such event, the Investigating Officer/prosecution should have examined the parents of PW.1.

28. So far as the attempt of accused to commit the murder of PW.1 on 22.03.2010 by dousing her with kerosene, PW.1 herself in her cross-examination admits that the galata started in the hall and that went upto she coming out of the house. She admits that in the outhouse of the

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accused, one Chandranayak and his son Murthynayak are residing. She admits that said Chandranayak is the retired police personnel and Murthynayak is a teacher. If there was such noisy commotion, naturally they would be the witnesses to the said incident. She also admits that surrounding the house of the accused, there are other residential houses, one grocery shop. She further admits that during the galata the tenants had also assembled there. They were all the independent witnesses. Then the prosecution should have examined such independent witnesses instead of interested witnesses PWs.6, 8 and 9. Further the FSL Report Ex.P16 shows that MOs.1 to 4 had no traces of kerosene. PW.5 is the only neighbour examined in proof of such incident. He did not support the prosecution case with regard to the alleged galata or attempt of the accused trying to commit the murder of PW.1.

29. If the cheque for Rs.85,000/- was issued in pursuance of the demand of additional dowry in the sawmill of PW.12, then he should have supported the same. The overall evaluation of the evidence goes to show that only after accused No.1 filing divorce petition, as a counterblast to the same the complaint was filed. Unfortunately, based on

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such complaint, the accused were arrested and accused No.1 was even suspended from service as evident from the documents produced by the accused and admitted by PW.1. In such cases whoever

gives legal advice to one of the couple to resort to file dowry harassment case as a counterblast to matrimonial case shall realize that they spoil the matrimonial life of the couple, instead of serving the institutions of the marriage and family. The party should also exercise their better discrimination power in abiding by such legal advice.

30. The trial Court on sound evaluation of the evidence on record and considering the relevant law has acquitted the accused of all the charges. The said order does not suffer any illegality or perversity. There is no merit in the appeal. Hence the following:

ORDER The appeal is dismissed.

Sd/-

JUDGE Sd/-

JUDGE KSR